

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 17, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file number EXP202212375, followed against the CITY COUNCIL OF ÁVILA (hereinafter, the City Council).

In said file, it is recorded that the complainant exercised their right of access to the personal data concerning them, without said request being duly addressed, issuing a resolution that required the following:

“FIRST: TO GRANT the complaint filed by A.A.A. and to urge the CITY COUNCIL OF ÁVILA, with NIF P0501900E, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Access or a motivated denial indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution.

The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights, in which the City Council was granted a period of ten working days to address the exercise of the right of access, was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, being received by the responsible party on April 17, 2023, as recorded in the acknowledgment of receipt in the file.

THIRD: On May 12, 2023, and under registration number REGAGE23e00030406078, a response from the City Council was registered, stating that it was urged “to the interested parties that they could access all the information through the corresponding file of the applicant, that is, the Management of Social Services of Ávila.”

However, the City Council did not inform this Agency that it had sent the complainant a certification addressing the exercised right of access or a motivated denial.

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FOURTH: Once the period granted for the required actions in the resolution of the exercise of rights procedure has elapsed without this Agency having been made aware of them, and having received a written request from the claimant, registered on May 31, 2023, with entry number

REGAGE23e00034533983, requesting compliance with the resolution, on June 2, 2023, with outgoing registration number REGAGE23s00035239074, a requirement is sent to the City Council to provide the claimant with certification of compliance with the indicated resolution within five working days, and to notify this Agency of the measures adopted within ten working days. The notification of this requirement was carried out in accordance with the rules established in the LPACAP through electronic notification, being collected by the responsible party on June 2, 2023, as evidenced by the acknowledgment of receipt in the file.

FIFTH: On June 8, 2023, entry number REGAGE23e00037060814, a response from the City Council is registered, stating that “from this Headquarters we have contacted the interested party, Mr. A.A.A., by telephone, and we have also reached out to him electronically, informing him that the requested file is available at this Headquarters.” Despite this statement, in this entry, the City Council does not provide any means to demonstrate that it has attended to the right of access exercised under the terms

established by the regulations.

SIXTH: Once the new period granted for the required actions in the resolution of the exercise of rights procedure has elapsed without this Agency having been made aware of them, and having received a new written request from the claimant dated June 21, 2023, with entry number

REGAGE23e00040605621, requesting compliance with the resolution, on June 30, 2023, with outgoing registration number REGAGE23s00043251748, the City Council is once again required to provide the claimant with certification of compliance with the indicated resolution within five working days, and to notify this Agency of the measures adopted within ten working days. In this new requirement, the City Council was reminded that it must comply with the right of access under the terms of Article 15 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), which was reproduced literally, since the documentation that had been submitted to this Agency to date did not comply with the provisions of that article. The notification of this requirement was carried out in accordance with the rules established in the LPACAP through electronic notification, being collected by the responsible party on June 30, 2023, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: After the period of the initial resolution and the subsequent requirements has elapsed, the City Council has not sent a response to this Agency that certifies that it has attended to the exercised right of access, or, if applicable, that it has denied it with justification indicating the reasons why the request should not be attended to.

EIGHTH: No ordinary administrative appeal can be made against the aforementioned resolution due to the expiration of the established deadlines for it. Likewise, the

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The interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or of a request for precautionary suspension of the resolution.

NINTH: On October 18, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the City Council, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

TENTH: The aforementioned initiation agreement was acknowledged by the City Council on October 20, 2023, as evidenced by the acknowledgment of receipt in the file.

ELEVENTH: On November 3, 2023, with entry registration number REGAGE23e00074850702, the City Council submitted a written statement of allegations regarding the initiation agreement in which, concerning compliance with the resolution of the rights exercise procedure of file number EXP202212375, it states the following.

The City Council asserts that there has been no obstructive or evasive conduct towards the Spanish Agency for Data Protection because "on 10/05/2023 (...) a report from the Local Police Headquarters of Ávila and a response from the data processing officer of the Honorable City Council of Ávila were sent to said agency from the Secretariat of the Honorable City Council of Ávila (...) which clearly demonstrated compliance with the obligations that satisfied the right of access to the information expressed by the interested party.

From this moment, a relationship was initiated aimed at providing the Agency with evidence that the required procedure had indeed been fulfilled: thus, on 02/06/2023, the Agency requested the City Council a certification of compliance with the resolution issued on this date communicating the measures adopted in compliance with the requirement made (...). On 08/06/2023, a document was sent to the Spanish Agency for Data Protection, in which it was communicated that the local police headquarters had contacted the interested party, Mr. A.A.A., also through electronic means, making the requested file available to him. (...)

On 08/06/2023, a document was sent by the Local Police Headquarters, fulfilling the resolution issued

by the SPANISH DATA AGENCY in which the interested party Mr. A.A.A. was informed of the availability of the requested file, in compliance with Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, indicating that if he wished to obtain a copy of it, he must first prove the payment of the fees established in the Municipal Ordinances. (...), that is, at all times information was provided to the interested party, and once the fees were paid, the requested information was delivered to him (...).

The City Council declares that it has not violated the rights of the interested parties appearing in the inspection file initiated by the Ministry of Family of the Junta de Castilla y León and that "the interested party (despite not presenting a private document with notarized signature or a public document that would allow him to act on behalf and representation of his mother and sister, presenting...

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only a document signed by both), from the very beginning has had all the documentation that was in the possession of the Local Police, which has been sent to the Department of Family and Equality of Opportunities.

Although it goes without saying, as it is obvious, this municipality is not the Administration responsible for processing the files that are the subject of this procedure, acting exclusively in collaboration with the substantive Administration that has material competence over the matter, namely, the Department of Family and Equality of Opportunities of the Territorial Management of Social Services of Ávila through the Family Section.

It should be noted what was indicated by the Data Processing Officer of the City Council of Ávila (...):

“- The request for the report by the Social Services of JCYL (on June 16, 2021) was in relation to the habitual residence of Ms. B.B.B., only the name of Mr. A.A.A. being recorded therein to indicate his place of registration.

- There is a response to everything indicated by the claimant from the data processing officer of the Honorable City Council of Ávila with NRS 2022/10144 dated April 8, 2022, to Ms. B.B.B. Mr. A.A.A., the claimant, previously authorized (on July 29, 2021) Ms. B.B.B. to (...) undertake matters related to different administrative procedures.

- From the claimant Mr. A.A.A., once the file managers of the Secretariat of this Corporation were verified, there is no record of the creation of a profile nor that it is subject to automated individual decisions.

- Nevertheless, and in the interest of greater transparency, a new report was issued by the Local Police Headquarters of Ávila, issued on May 5, 2023, the content of which is attached.”

The City Council states that “it has never refused to provide information to the interested parties, since as stated in the attached documentation, it has been the local police that has conducted the inquiries and issued the successive reports that certified what was done, identifying the inspection process that originated its action, as well as the identification number of the acting agents, which unequivocally leads us to conclude that nothing has been omitted, nor has any provision been violated, and this City Council cannot be sanctioned for a type of infraction that has not been committed.

This conclusion is due to the fact that the local police have inspected and reported on what was done, complying with the requirement of transparency demanded, which is why this City Council has not violated any rights of the complaining individual, but rather, upon receiving their request, the provision of information by the Local Police service is carried out within the framework of the due collaboration with the autonomous administration, which requires data that is provided to it, and, consequently, resolves a sectoral procedure for pension collection, which, not satisfying the interests of the interested citizen, leads to an action against this City Council, which is, to say the least, exaggerated, in strict terms of defense.

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This City Council, in its daily operations, recognizes that transparency, access to public information, and good governance standards are the fundamental pillars of all political action, as they allow for scrutiny of the actions of public officials, enabling citizens to understand how decisions that affect them are made, how public funds are managed, or under what criteria our institutions operate. This will encourage them to respond to a society that is critical, demanding, and seeks participation in public matters.

This means, among other things, that the citizen or the interested party in a specific procedure has the right to access public information based on the provision contained in Article 105.b) of our constitutional text, and in Articles 13 and 53 of Law 39/2015, of October 1, on the common administrative procedure of public administrations. As we will see below.

This City Council has defined that right of access to documents contained in both completed administrative procedures and ongoing procedures, excluding from that right confidential documents in accordance with sectoral regulations, and instrumental material used as support for the resolutions adopted. Everything else is provided to the interested party either by incorporating them as an interested party in the GESTDOC software application or by providing the requested documentation in paper format, upon payment of fees, which has been done in this file.

The City Council indicates that it has acted at all times guided by a duty of administrative collaboration, as set out in Article 140 of Law 40/2015, of October 1, on the legal regime of the public sector, in which, at all times, the content of the reports is inferred from the physical verification of residency or not at an address in this municipality. In this case, it states, the City Council provided the ministry with the verified certainty on-site regarding "who lived at the address" referred to by the family ministry. It adds that no information has been disclosed that was not provided by the applicant themselves or by the acting regional administration.

The City Council recalls that "In the Resolution 13/2018 of the Council of Transparency, Access to Public Information and Good Governance of the Valencian Community dated February 15, 2018 (Exp. 24/2017), it is stated in its FJ-5: 'Although it may seem obvious, it can be understood that the right of access to information entitles one to be informed of the existence or non-existence of the requested information or documents. This can be considered implicit in Article 20.3° or Article 18.1° d and 20 of the LTBG 19/2013.' We understand that the information has been provided correctly, without infringing on their right of access. The proposal of this Agency, seemingly disregarded by this City Council, should not be penalized for understanding that everything was already resolved, having informed the interested party. The interested party has not been deprived of exercising their right."

The City Council also points out that "The SJCA number X of Toledo, XXX/2021 (Resource XXXXXXXX), when dismissing the appeal filed by the claimant for not having been provided with the requested information by the Administration, states in its FJ-Third that: '(...) it must be so since the responding City Council does not deny information.'"

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to the appellant but states that it cannot be provided "due to the non-existence of the object as there are no proceedings described by the interested party regarding which information is requested, beyond the documents contained in the copy of the file made available in the mandatory procedure along with the Diligence dated February 28 and R.S. No. XXX, notified to the interested party on...". That is to say, what does not exist cannot be provided to the appellant, and hence there is no record of it in the file, nor has the appellant proven anything regarding that aspect." This being general doctrine, considering the content of the right of access, we understand that the right of the interested party has not been denied, since the requested information has been provided on several occasions, both the report from the data processing officer and from the local police, which expresses the account of the actions taken, and the identification of the acting agents."

For all the above, it concludes that “in no case can it be affirmed that this City Council has withheld information and data requested from the individual. And certainly, it cannot be maintained that this City Council has disobeyed, ignored, or obstructed the directives of this agency, since at all times it has responded to everything requested, submitting to the pace of the interested party in complying with municipal requirements, such as the payment of the corresponding fees for the issuance of documents.

It is therefore noted that this City Council has complied with the order to adopt measures imposed by this agency in the sanctioning resolution (the right of access to information exercised by the interested party has been fulfilled), so we are not faced with an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, requesting the filing of this procedure.

For this reason, we request the acceptance of these allegations, and accordingly, a Resolution of this Agency be issued declaring the non-existence of responsibility for any infringement, filing the procedure.”

TWELFTH: On July 9, 2024, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection declare that the City Council has infringed the provisions of Article 58.2 of the GDPR, an infringement classified in Article 83.6 of the GDPR. This proposal for resolution was duly notified to the City Council.

THIRTEENTH: On July 12, 2024, with registration number REGAGE24e00052619479, the City Council submitted a written statement of allegations to the Proposal for resolution in which, regarding compliance with the resolution of the procedure for exercising rights of file number EXP202212375, it states the following.

The City Council reiterates that “an infringing conduct is being attributed to an administration in relation to the processing of data linked to a file in which it requests the right of access when this City Council is not the Administration responsible for its processing, acting exclusively in an instrumental manner in collaboration with the substantive administration (...)

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Therefore, we are not faced with a breach regarding the claim but rather with a potential formal irregularity for not having allegedly communicated to that Agency the realization of access and information granted to the claimant Mr. A.A.A.”

The City Council states that “the party legally obligated to provide access to all documentation that constitutes a file is exclusively the one responsible for its processing” and cites Article 70 of the LPACAP.

However, the City Council adds, “as has been evidenced in the documents submitted in response to the allegations made regarding the initiation of the sanctioning file, and precisely in response to what was requested by that Agency, Mr. A.A.A. has been duly attended to.”

The City Council believes that “both the claimant and that Agency turn this City Council into a responsible party for providing information or making decisions that neither concern nor pertain to it.”

The City Council, after indicating that it responded to two compliance requests from this Agency, acknowledges that “it is true that this Agency, on June 21, 2023, received in this City Council on the 30th of the same month and year, again requests that the adopted measures be notified, understanding by this City Council in good faith that since a response had been sent in the two previous writings, that request was considered fulfilled.

Well, we want to assume that due to this omission, on October 18, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the City Council, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, being answered by that resolution through a written submission of allegations that, in the proposal for resolution that motivates the present, are not appreciated in any way.

And precisely as a basis for the aforementioned allegations, all documentation of the actions taken was provided, which evidences all aspects of the proceedings of the City Council previously mentioned, so that this Agency thus has a complete and fulfilled knowledge of what concerns this City Council.”

On the other hand, the City Council points out that “From the account of the facts, the various allegations, and the detailed documentation provided in the original file and in the current one, it is inferred that there has been no intentional or negligent action on the part of the City Council of Ávila, either in the execution of the resolution of that Agency in the file for access to personal data filed by Mr. A.A.A., or in the fulfillment of the requests directed to this entity.

For the imposition of an administrative sanction based on the infringements contained in paragraphs 4 to 6 of Article 83 of the General Data Protection Regulation, it is necessary, as declared by the Court of Justice of the European Union in judgments of December 5, 2023 (cases C-683/21 and 807/21), that it be evidenced that such infringement was committed intentionally or negligently.”

The City Council argues that “Neither the initiation agreement of the sanctioning file nor the proposal for resolution evidences the culpable or negligent action required by the aforementioned judgments for the imposition of the sanction, rather the opposite. Despite the instrumental position of this City Council in the file of the Family Department of the Junta de Castilla y León, from the allegations and documentation sent to that Agency (May 10, June 8, and November 3, 2023), only scrupulous compliance by this Administration with the obligations aimed at satisfying the right of access requested, at the time, by the interested party and ordered by that Agency can be deduced.

It is therefore noted that this City Council has complied with the order to adopt measures imposed by this agency in the sanctioning resolution (the right of access to the information exercised by the interested party has been fulfilled) and this was communicated to that Agency in the manner explained (specifically on June 8, 2023), so that we are faced with an administrative infringement that did not occur in the terms attributed.”

For the reasons stated, the City Council requests that “a Resolution of that Agency be issued declaring the non-existence of responsibility for the commission of any infringement by this City Council, archiving the procedure.”

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requests for compliance with it indicated in the first, fourth, and sixth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and executive due to the passage of the deadlines provided for the filing of the resources indicated therein.

SECOND: The City Council has not sent a response to this Agency that evidences compliance with the resolution in the terms of Article 15 of the GDPR prior to the agreement to initiate the present sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of the

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digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the City Council, the following should be noted. In the resolution of the rights exercise procedure of file number EXP202212375, the City Council was required to send the complainant a certification addressing the exercised right of access or to deny it with justification. Additionally, the actions taken as a result of this resolution had to be communicated to this Agency.

As stated in the sixth antecedent, on June 30, 2023, once the complainant again requested this Agency in a letter dated June 21, 2023, the execution of the resolution, providing proof of payment of the corresponding fees, the City Council was again required to send the complainant certification of compliance with the indicated resolution and to notify this Agency of the measures adopted. In this requirement, the City Council was reminded that it must demonstrate compliance with the right of access in the terms of Article 15 of the GDPR. No response was received to this requirement. Therefore, at the time of the initiation of the present sanctioning procedure, compliance with the resolution of EXP202212375 had not been achieved, as it had not been demonstrated to this Agency that a response to the right of access had been provided, despite being expressly ordered in the resolution and having been requested on several occasions, the last being on June 30, 2023. The information provided during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement. However, it is considered that it is not appropriate to propose the adoption of the measures provided for in the initiation agreement, consisting of ordering the notification to this Agency of the actions carried out in compliance with the resolution of file EXP202212375, as they were carried out as part of the allegations presented. Regarding the information communicated, this Agency acknowledges receipt of it, without this statement implying any pronouncement on it.

III

Allegations to the proposed resolution

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In response to the allegations against the Proposal for Resolution of this file presented by the City Council, the following should be noted.

The allegations presented against the Proposal for Resolution of this file largely reproduce the same arguments raised against the Agreement to initiate, and therefore, have already been addressed by this Agency in the previous Legal Basis.

In this regard, it should be emphasized that the order issued in the resolution that concluded the rights procedure of file EXP202212375, the non-compliance of which gives rise to the present sanctioning procedure, has the City Council of Ávila as the obligated subject, and any reason for disagreement with the determination of the obligated subject could have been raised during the processing of that procedure, or in the corresponding appeal against it. This resolution is, at present, final and enforceable, and must be complied with in its own terms, and allegations seeking its revision cannot be accepted.

Regarding the requirement of culpability for the imposition of an administrative sanction based on the infringements contained in sections 4 to 6 of Article 83 of the GDPR, indeed, the principle of responsibility provided for in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that:

“Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are responsible for the same due to intent or fault, may be sanctioned for acts constituting an administrative infringement.”

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, “(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or faultless responsibility is not applicable in the administrative sanctioning sphere, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions solely based on the

result, without demonstrating a minimum level of culpability even in terms of mere negligence, is excluded. However, the way in which responsibility is attributed to legal entities does not correspond to the forms of culpability that are imputable to human conduct.”

Thus, in the case of infringements committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011 (cassation appeal in the interest of law 48/2007), it is necessarily applied differently than it is with individuals. According to STC 246/1991 “(...) this distinct construction of the attribution of authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be genuinely effective and from the risk that, consequently, the legal entity subject to compliance with that norm must assume.”

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To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that “although the culpability of the conduct must also be subject to proof, it must be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires proof of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the party claiming their non-existence; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against typically unlawful behavior.”

Furthermore, it should be reiterated that the last compliance request from this Agency, made under the understanding that the previous ones had not been answered in the terms of Article 15 of the GDPR, received no response. Consequently, the lack of culpability is dismissed since the City Council did not adequately respond to the requests made by this Agency prior to the initiation of the present sanctioning procedure.

Therefore, it is not possible to grant the City Council's request regarding the non-existence of liability and the filing of the present sanctioning file.

IV

Unfulfilled Obligation

In light of the facts presented, it is considered that the City Council has failed to comply with the resolution of the Spanish Data Protection Agency.

Thus, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the City Council, for violation of Article 58.2.d) of the GDPR, which states the following:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;”

V

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

“Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount.”

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For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

VI

Imposed Sanction

Article 83.7 of the GDPR states the following:

“Without prejudice to the corrective powers of supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD states the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that must be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the preceding paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall be

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will order the publication in the corresponding Official State or Autonomous Community Bulletin.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF ÁVILA, with NIF P0501900E, has infringed the

provisions of Article 58.2 of the GDPR, an infringement classified under Article 83.6 of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF ÁVILA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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